

23LBCV01989 23LBCV01989

County: los-angeles

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Case Number: 23LBCV01989 Hearing Date: June 26, 2026 Dept: S28

DISCUSSION

Applicable

Law

"[A] prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c).) Attorney's fees are mandatory for the prevailing defendant on a SLAPP motion. The court has discretion to determine reasonable amounts. (See *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1324, 1328 [trial court did not abuse discretion in awarding compensation for 71 hours of attorney time when over 600 hours were billed where court reasonably concluded that billing hours were padded; defendant filed single anti-SLAPP motion on single issue that was not particularly complicated and that did not require intensive discovery].) "California courts do not require detailed time records, and trial courts have discretion to award fees based on declarations of counsel describing the work they have done and the court's own view of the number of hours reasonably spent. [Citations.]" (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal. App. 4th 691, 698.)

The prevailing defendant is entitled to recover attorneys' fees and costs for the motion to strike only, not for the entire action. (*Lafayette Morehouse v. Chronicle Publishing Co.* (1995) 39 Cal.App.4th 1379, 1382; *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 443.) An award of fees may include not only the fees incurred with respect to the underlying motion, but also the fees incurred in enforcing the right to mandatory fees under C.C.P.

425.16. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1141.)

Analysis

Bixby

Hill requests \$50,152.50

in attorney's fees and \$1,267.41 in costs as the prevailing party on demurrer. (Mot., p. 2.)

i.

Prevailing Party

Bixby Hill prevailed upon its Demurrer (without leave to amend) to Plaintiffs' First Amended Complaint which resulted in the entry of a Judgment in favor of Bixby Hill and against Plaintiffs. Plaintiffs do not contest that Bixby Hill is the prevailing party for the purposes of this Motion. (Opp., p. 3.)

ii.

Reasonableness of Fees

The

total amount of fees and costs sought in this Motion is \$64,963.50, comprised of 158.50 hours of attorney time. In reply, Bixby

Hill clarified that in consideration of the Court already granting fees for the anti-SLAPP motion, the amount sought should be reduced from \$64,963.50 to \$50,152.50 in attorney's fees, and the costs request should be reduced by \$133.30, from \$1,400.71 to \$1,267.41. The attorney's fees include counsel's review of the Bixby Hill's documents; preparation to answer the Complaint and answering the Complaint; efforts to meet and confer regarding resolution; preparation of communications to all counsel; research and preparation to draft a Motion For Summary Judgment; research and preparation to draft an anti-SLAPP motion; research and preparation to draft a Demurrer to the First Amended Complaint; attendance at court hearings; and post judgment matters.

In

opposition, Plaintiffs challenge the requested fees as unreasonable when measured against their own as Plaintiffs have billed \$34,490 up the pre-trial stage. (Opp., p. 9.) Plaintiffs contend that Bixby Hill's fees are also unreasonable because Bixby Hill was dismissed from this case without having to take a deposition, answer discovery, prepare pretrial documents, and defend at trial. (Id., p. 8.)

Plaintiffs

also appear to challenge the Court's ruling in granting the Anti-SLAPP motion, stating that "the

Defendant--and in particular Adam Obeid, Esq.-told the entire Bixby Hills Community that if the Oftadehs won this lawsuit, then all 200+ homeowners would have to cut down their own trees and pay for it. THIS IS A LIE, and lies are not protected speech. . .

Attorney Obeid's false statements did the job. The community was outraged that one neighbor would seek to have every one of them cut down their trees at each homeowners expenses, especially in a community that is known for its trees. The community promptly voted to amend the CC&Rs and thereafter shunned the Plaintiffs. . .the First Amended

Complaint alleged the truth when they attempted to hold the HOA liable for their attorney's knowingly false statements, the Oftadehs were not chilling protected free speech—because false statements never have been protected speech. . . Despite the clear precedent, the Defendant somehow won the Anti-Slapp Motion with the Court (apparently) agreeing that Attorney Obeid's false statements were protected speech, which is inconsistent with the U.S. Constitution. One look at the

Prayer of the FAC establishes the Defendant lied. And now it is entirely unfair for the Defendant to be awarded any attorneys fees, and certainly not excessive attorney fees, for prevailing on the AntiSlapp Motion—especially when they are being awarded the very attorney who made the defamatory statements that caused the Plaintiffs to include the libel cause of action." (Opp., pp. 4-7.)

In

reply, Bixby

Hill argues that Plaintiffs do not

dispute the hourly rate nor do they identify any specific time entry they claim should be reduced or disallowed. Bixby Hill contends that Plaintiffs make generalized arguments that the total number of hours seems high because Bixby Hill prevailed before depositions,

pretrial, or trial, but regardless, Bixby Hill was required to respond to Plaintiffs' claims, analyze the CC&Rs and related documents, communicate with the client and co-defendants, participate in case management and inspection issues, research and prepare dispositive motions, prepare and argue an anti-SLAPP motion, prepare and argue a demurrer, and address post-judgment fee and cost issues.

Bixby

Hill further argues that “[a] substantial portion of Plaintiffs’ Opposition has nothing to do with whether the Association’s billing entries are reasonable. Plaintiffs again argue that the Association should have enforced the CC&Rs differently, that the Association acted in bad faith, that counsel’s statements were false, and that the anti-SLAPP ruling was wrongly decided. Those arguments are not proper opposition points to a prevailing-party fee motion.” (Reply, p. 3.)

Here,

the fees sought are largely reasonable. Courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom. (*East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 436-437.) Plaintiffs have failed to point to any specific portion of the hours or fees as excessive or unreasonable, instead only measuring movants’ hours and fees against their own, which presumes that Plaintiffs’ hours are the litmus test for reasonableness. The Court agrees with Bixby Hill that if Plaintiffs believed particular entries were excessive, vague, duplicative, clerical, or unrelated, Plaintiffs were required to identify those entries and explain the requested reductions. Plaintiffs similarly do not dispute the reasonableness of Bixby Hill’s attorneys’ hourly fee. Bixby Hill provides the requisite invoices and declarations to support these requests.

Plaintiffs

also improperly attack the Court’s ruling granting the Anti-SLAPP motion and ask the Court to “consider these compelling facts when awarding attorneys fees.” If Plaintiffs took issue with the ruling, they have other avenues they can pursue. An opposition to a fee motion is not the proper avenue to re-litigate the merits of the Court’s ruling. The Court made these same findings on April 8, 2026 and April 22, 2026 in ruling on other Motions for Attorneys’ Fees, where Plaintiffs made the same baseless arguments.

However,

the Court finds that a reduced amount of \$40,000 would be proper given all that is before the Court.

CONCLUSION

Bixby

Hill’s Motion for Attorneys’ Fees is GRANTED in the reduced amount of \$40,000.00, and \$1,267.41 in costs.

Moving party to give notice.